

Terrorism and Organised Crime

Previous Years' Questions:

1. Winning of 'Hearts and Minds' in terrorism affected areas is an essential step in restoring the trust of the population. Discuss the measures adopted by the Government in this respect as part of the conflict resolution in Jammu and Kashmir. (2023)
2. Give out the major sources of terror funding in India and the efforts being made to curtail these sources. In the light of this, also discuss the aim and objective of the No Money for Terror (NMFT) Conference recently held at New Delhi in November 2022. (2023)
3. Discuss the types of organised crime. Describe the linkages between terrorists and organised crime that exist at the national and transnational levels. (2022)
4. Analyse the multidimensional challenges posed by external state and non-state actors, to the internal security of India. Also discuss measures required to be taken to combat these threats. (2021)
5. Analyse the complexity and intensity of terrorism, its causes, linkages, and obnoxious nexus. Also suggest measures required to be taken to eradicate the menace of terrorism. (2021)
6. The banning of 'Jamaat-e – islaami' in Jammu and Kashmir brought into focus the role of over-ground workers (OGWs) in assisting terrorist organizations. Examine the role played by OGWs in assisting terrorist organizations in insurgency affected areas. Discuss measures to neutralize the influence of OGWs. (2019)
7. The Indian government has recently strengthened the anti-terrorism laws by amending the unlawful activities (Prevention) Act (UAPA), 1967 and the NIA Act. Analyse the changes in the context of prevailing security environment while discussing the scope and reasons for opposing the UAPA by human rights organizations. (2019)
8. India's proximity to two of the world's biggest illicit opium-growing states has enhanced her internal security concerns. Explain the linkages between drug trafficking and other illicit activities such as gunrunning, money laundering and human trafficking. What counter-measures should be taken to prevent the same? (2018)
9. The scourge of terrorism is a grave challenge to national security. What solutions do you suggest to curb this growing menace? What are the major sources of terrorist funding? (2017)
10. Terrorism is emerging as a competitive industry over the last few decades." Analyse the above statement. (2016)
11. The terms 'Hot Pursuit' and 'Surgical Strikes' are often used in connection with armed action against terrorist attacks. Discuss the strategic impact of such actions. (2016)
12. The diverse nature of India as a multireligious and multi-ethnic society is not immune to the impact of radicalism which has been in her neighbourhood. Discuss along with the strategies to be adopted to counter this environment. (2014)

Key Terminologies

Terrorism: does not have a universally accepted definition but broadly refers to the unlawful use of force and violence against persons or property to intimidate or coerce a government, the civilian population, or any segment thereof, in furtherance of political or social objectives.

Militancy: Confronts the state and targets state infrastructure and its representatives, such as a country's police and military.

Insurgency: It is the long, protracted armed struggle by a section of the population against the state because of several reasons such as ideology, ethnicity, linguistic differences, or out of fundamentalist and extremist tendencies. An insurgency often thrives with foreign support, such as with Pakistani support in Kashmir.

Extremism: Extremism is a state wherein a person or an organisation holds extreme political or religious views.

Secessionism: Any movement aimed at separating a particular region from the mainland to form a separate nation, have a separate identity.

Hot Pursuit: The strategy of going after and targeting the terrorists and insurgents, who have attacked any asset within a specific time is called as hot pursuit. E.g.- In 2015, India conducted a cross-border strike against the insurgents belonging to NSCN-IM, who had ambushed an army convoy of 6 Dogra Regiment.

Surgical Strike: Surgical Strike is a military attack that is carried out to damage military targets, minimal collateral damage to the surrounding and the general public infrastructure. The aim is to eliminate the target without causing collateral damage to nearby areas and civilians. E.g.- Indian army's attack on militant launchpads in PoK in September 2016.

Terrorism encompasses a range of complex threats: organized terrorism in conflict zones, foreign terrorist fighters, radicalized 'lone wolves' and attacks using chemical, biological, radiological, nuclear, and explosive materials. Terrorist groups incite individuals, often young people, to leave their communities across the world and travel to conflict zones. The way recruits are targeted and radicalized has shifted, with a greater focus on social media and other digital channels.

The spirit of tolerance and acceptance, universal rights, special provisions for minorities etc. has ensure that despite being the most diverse society, the radicalisation and participation in global terrorism from India has been minimal. The terrorism within India is mostly exported from abroad through porous borders.

Important Factors behind Terrorism:

1. Perceptions of deprivation, inequality, exploitation and injustice especially amongst culturally defined groups can lead to civil violence, of which terrorism may be a part.
2. In authoritarian and semi-authoritarian states, a lack of political legitimacy and integration of the political fringes, encourages **ideological terrorism**. The potential is exacerbated by ethnic diversity.
3. Terrorism in one country can spill over into neighbouring areas.
4. **Mass media** can influence the patterns of terrorism by enhancing agenda setting, increasing lethality, and expanding the transnational character.
5. Violence as a tool to mobilise opinion and press for demands deteriorates into terrorism.
6. In the case of peace agreements, radical members of coalition groups regroup and escalate hostilities to undermine confidence and prevent compromise, thus regaining the initiative and avoiding marginalisation.
7. Proxy-wars among major powers can deteriorate into terrorism.

Global Terrorism Index 2024

- Burkin Faso most impacted country. Significant improvement in Afghanistan and Iraq.
- India ranked 14th while Pakistan ranked 4th.
- It named 7th October 2023 attack by Hamas in Israel as largest single terrorist attack in 2023, also the largest single terrorist attack since the 9/11 incident.
- Globally, deaths from terrorism increased by 22% to 8,352 deaths compared to 2023. However, it remains 23% lower than its peak in 2015.

8. Backlash against globalisation and modernisation in traditional societies as they fear loss of identity and need to preserve it.
9. Poor societies with weak state structures are more exposed to civil wars than wealthier countries, and therefore the risk of terrorism increases.
10. Power differential and goal of defeating a stronger adversary: States can use terrorism as tool for asymmetrical warfare whom they cannot defeat in conventional war.
11. Increasing religious radicalisation across the globe and xenophobia among societies.

Challenges in tackling terrorism:

1. Lack of agreement over definition of terrorism.
2. Used by major global players to fulfil their geopolitical ambitions. One person's terrorist becomes another person's freedom fighter.
3. Lack of political will to call out the root cause of terrorism.
4. Lack of broad-based religious reforms and inability of religious leaders to counter the propaganda of terrorist groups.
5. Political use of the term by nations to target their adversaries.
6. Use of social media, dark net, and deep web to radicalise youth for the purpose.
7. Lack of objective decision making by the UNSC against nations supporting in terrorism and prescribing individuals.
8. Institutional frameworks like **FATF** and **1267 Sanctions committee of the UNSC** are not robust enough to deter nations.

Steps Taken to tackle terrorism:

In India:

1. **Border Protection grid** has been strengthened to tackle any infiltration from across the border.
2. India has made pre-emptive strikes across the border against terror elements.
3. UAPA has been amended to designate individuals as terrorists.
4. **National Investigation Agency (NIA)** functions as Central Counter Terrorism Law Enforcement Agency in country. Mandate of NIA has been expanded to investigate in cases related to terrorism within country as well as abroad.
5. For the modernisation of the police, the '**Police Technology Mission**' has been established with the aim of creating the world's best anti-terrorism force in India.
6. PMLA has been made robust to tackle terror financing.
7. **National Intelligence Grid** or **NATGRID** aims to provide a "cutting-edge technology to enhance India's counter-terror capabilities and National Cyber Coordination Centre (NCCC) screens communications and coordinates with other intelligence agencies.
8. Creation of two new divisions (Counterterrorism and Counter-Radicalisation Division and Cyber and Security division) in Ministry of Home affairs to give focused attention to the issues relating to terrorism, counter radicalization, cyber security etc.
9. Deradicalization programmes, Peace committees and developmental initiatives.

India's new Counter Insurgency (CI) Strategy

India targeting NSCN (K) insurgents in Myanmar (2015) and Surgical and Air strikes in PoK and Pakistan respectively and affirming them have been termed as new CI strategy.

Significance:

- Demonstrates India's capacity to target insurgents beyond its borders.
- Imposes cost on the adversary by taking fight to their turf.
- Shades India's image of a soft state and presents its as a strong and confident nation capable to protect its interests beyond its borders.
- Creates deterrence since terrorists now know that they are not safe even beyond borders.

Global Initiatives:

1. **United Nations Global Counter-Terrorism Strategy (GCTS):** Adopted in the form of a General Assembly resolution in 2006, it is a unique global instrument that aims to enhance national, regional and international efforts to counter terrorism. It consists of four pillars:
 - Measures to address the conditions conducive to the spread of terrorism.
 - Measures to prevent and combat terrorism.
 - Measures to build States' capacity to prevent and combat terrorism and to strengthen the role of the United Nations system in that regard.
 - Measures to ensure respect for human rights for all and the rule of law as the fundamental basis of the fight against terrorism.

2. **UN Security Council (UNSC) Counter Terrorism Committee (CTC):** It was established by UNSC resolution 1373 (2001) in the wake of the 11 September terrorist attacks in the United States. It comprises all 15 UNSC members.

Mandate:

- Tasked with monitoring the implementation of steps to enhance countries' legal and institutional counter-terrorism abilities, at every level, locally and internationally.
 - These steps include, criminalize the financing of terrorism, Suppress the provision of safe haven, Deny all forms of financial support for terrorist groups etc.
 - Under resolution 1535 (2004), Counter-Terrorism Committee Executive Directorate (CTED) to assist the work of the CTC was established.
3. **The Da'esh and Al Qaeda Sanctions Committee or 1267 sanctions committee** of the UNSC to designate organizations and individuals as global terrorist
 4. **Financial Action Task Force** to prevent money laundering and act against nations supporting and harbouring terrorists.
 5. **Global Counterterrorism Forum (GCTF):** GCTF (India is a member) is an informal, apolitical, multilateral platform that facilitates open discussions among stakeholders, bringing together experts and practitioners from across the world's regions.
 6. **UN Counter-Terrorism Centre (UNCCT)** under UN Office of Counter-Terrorism (UNOCT) promotes international cooperation in fight against terrorism and supports the member states to implement the Global Counter-Terrorism Strategy.
 7. Intelligence sharing among nations to prevent terror related incidents.
 8. Anti-terrorism cooperation, counter terrorism exercises have become key aspect of bilateral and multilateral cooperation.

Suggestions:

1. The term "terrorism" needs to be defined in order to take concrete action against groups involved in it.
2. Nations need to come together to sign "Comprehensive Convention on International Terrorism."
3. Permanent members of UNSC need to take decision objectively, devoid of geopolitical calculations to tackle the scourge of terrorism
4. Financial Action Task Force Members need to act in unison against nations like Pakistan which harbour terrorists and use them as part of state policy to destabilise their neighbours.
5. Marginalised groups in different nations need to be given adequate representation and their grievances should be redressed.
6. The religious dimension of terrorism can be tackled through religious reforms and involving religious leaders in calling out d propaganda by terrorists.

7. Differences and disputes between nations should be solved through dialogues rather than using elements of asymmetric warfare.

Terror Funding:

Sources of terrorist funding include, but are not limited to, low-level fraud, kidnapping for ransom, the misuse of non-profit organizations, the illicit trade in commodities (such as oil, charcoal, diamonds, gold, narcotics, and digital currencies).

- The **Terrorism Prevention Branch (TPB)** of the **United Nations Office on Drugs and Crime (UNODC)** works on the legal aspects of countering the financing of terrorism.
- It includes promoting the ratification of the relevant universal legal instruments mainly the **International Convention for the Suppression of the Financing of Terrorism (1999)**, and the implementation of these international standards.
- It also reviews of domestic legislations to ensure proper criminalization of offences related to the financing of terrorism and legislative drafting, developing the capacity of criminal justice and law enforcement officials, provision of specialized training and strengthening regional and international cooperation against the financing of terrorism.
- IMF has expanded its **anti-money laundering activities** and extended them to include **combating the financing of terrorism (CFT)**.
- Financial Action Task Force on Money Laundering to develop worldwide standards and take action against those supporting terror financing.

Delhi Declaration:

UN Security Council (UNSC) Counter Terrorism Committee's (CTC) special meeting held in October 2022 India adopted Delhi declaration, which called for:

1. Issuing new set of non-binding guiding principles in countering digital terrorism threat.
2. Counter terrorist exploitation of Information and Communications Technology (like payment technologies and misuse of drones etc).
3. Countering use of technologies for terrorist purposes, while respecting human rights and fundamental freedoms.
4. Deepen engagement with civil society, including women's organizations, private-sector entities etc.

In News: Third '**No Money for Terror**' (NMFT) Ministerial Conference on Counter-Terrorism Financing was held in New Delhi in November 2022.

History:

Started in 2018 by French Government mainly to focus on cooperation between countries to choke terror funding.

In 2019, the conference was held in Australia.

2022 Conference:

- Hosted by India. 93 participants including 78 countries.
- India urged the international community to take cognizance of threats emerging from regime change in Afghanistan, growing influence of AQ & ISIS.
- PM Modi said that "there is no good terrorism and bad terrorism. Only a uniform, unified and zero-tolerance approach can defeat terrorism,"
- Home Minister raised the issue of use of darknet and virtual assets like cryptocurrencies by terrorists.
- India proposed for establishing a permanent secretariat in India for sustained focus. It will be complementary to the FATF.
- Called for expeditious finalization and adoption of CCIT.
- Called for preventing the use of Non-Profit organizations to spread terror ideology.

Comprehensive Convention on International Terrorism (CCIT): CCIT provides a legal framework which makes it binding on all signatories to deny funds and safe havens to terrorist groups. It has been proposed by India on 17 December 1996 in the United Nations General Assembly (UNGA). It is yet to be adopted by the UNGA.

Major Objectives:

- To have a universal definition of terrorism that all 193-members of the UNGA will adopt into their own criminal law
- To ban all terror groups and shut down terror camps
- To prosecute all terrorists under special laws
- To make cross-border terrorism an extraditable offence worldwide.

CCIT remains deadlocked, mainly due to opposition from three main blocs – **the US, the Organization of Islamic Countries (OIC), and the Latin American countries.**

All three have objections over the “definition of terrorism” (the most divisive of the issues) and seek exclusions to safeguard their strategic interests. For example, the OIC wants exclusion of national liberation movements, especially in the context of Israel-Palestinian conflict. The US wanted the draft to exclude acts committed by military forces of states during peacetime.

Though there has been no consensus, but discussions have yielded three separate protocols aimed to tackle terrorism:

- International Convention for the Suppression of Terrorist Bombings, adopted in December 1997
- International Convention for the Suppression of the Financing of Terrorism, adopted in December 1999
- International Convention for the Suppression of Acts of Nuclear Terrorism, adopted in April 2005.

Lone Wolf Attacks:

Lone-wolf terrorism is the term used to describe someone who acts alone in a terrorist attack without the help or encouragement of a government or a terrorist organization. They are generally driven by some radical ideology and radicalised through use of Internet.

Challenges:

1. Since they act alone, it is extremely difficult to predict and prevent such attacks.
2. The weapon of attack could be anything- Gun, Knife or even driving a vehicle through crowd. Thus, even if vehicle is potential weapon which is difficult to guess.
3. This creates anxiety and panic among common population and doubts over state capacity to protect its citizens.
4. This also leads to communal and racial tension among communities. Thus, destabilizing the society.

Suggestions:

1. **Role of family and society:** In providing mental and emotional support to individuals feeling discriminated or are being manipulated.
2. **Role of educational institutions:** Keeping an eye on students, providing counselling to prevent any such extreme actions.
3. **Electronic Surveillance:** Of suspected individuals and organisations to detect any communication.
4. Provisions for deradicalization and reinduction in the society with the help of civil society groups and security agencies.

Over Ground Workers (OGW):

Over ground workers (OGWs) are people who help militants, or terrorists, with logistical support, cash, shelter, and other infrastructure with which armed groups and insurgency movements can operate. These people can be from any part of the society- bureaucrats, politicians, journalists, professionals etc.

- Apart from material support, they also provide ideological cushion and defend these groups in public sphere. Thus, trying to legitimize their activities.
- Since they are part of mainstream society, it becomes extremely difficult to find or target them without sufficient proof. Fundamental rights available to common citizens further come to their rescue.
- The activities of these individuals make tackling insurgency and terrorism even more difficult for the security forces because they also act as eyes and ears for these groups.

Since change in the status of Jammu and Kashmir, the intelligence agencies have gone for a crackdown on Overground workers and have arrested Over 1100 people.

Hybrid Terrorism:

A recent phenomenon where the groups are amorphous in nature and informally structured. They operate in small cells and do not have big organizational structures. This makes their operation discrete and difficult to identify. They're poorly trained and training is limited to firing a handgun and escaping.

These modules are supported by white coloured Overground workers like teachers, civil servants, lawyers, professionals, journalists and businessman etc who provide the ideological support and finances, and wage the information warfare on their behalf.

Grey Zone Warfare

Grey Zone Warfare refers to activities and strategies that fall between traditional warfare and peace, where state and non-state actors engage in actions that are coercive and aggressive but remain below the threshold of open, conventional war. The tactics are deliberately ambiguous, making it difficult for the targeted state or the international community to identify the aggressor or the nature of the threat. This ambiguity can involve the use of proxies, cyberattacks, or covert operations that allow the perpetrator to deny involvement.

Example: China building artificial islands in the South China Sea and militarizing them, Iran's support for Hezbollah in Lebanon and Houthis in Yemen etc.

Terrorism in Jammu and Kashmir

The security challenges in Jammu and Kashmir are mainly in the valley and some other districts bordering POK. Jammu has largely remained peaceful. But in recent months there have been frequent incidents in the Jammu region. Change in the status of Jammu and Kashmir and amendment to the article 370 on 5th August 2019 has altered the security scenario in the region.

Laws such as the Right to Education, Prevention of Child Marriage, Untouchability Act and many others are now applicable to J&K. New domicile law has benefitted The Scheduled Caste Valmiki community; refugees from West Pakistan, Gorkhas brought by the Dogra kings to serve the princely state's army etc.

Present Status:

Positives:

1. Making Jammu and Kashmir a union territory has expedited developmental initiatives, reduced corruption and ensured better implementation at the grassroots level.
2. Significant decline in militancy violence and law and order incidents in Valley. 174 security personnel and 110 civilians were killed in militancy violence in Kashmir in last three years compared to 290 personnel killed in three years prior to 5 Aug 2019.

- 930 militancy incidents took place in three years before Article 370 revocation compared to 617 militancy-related incidents in three years post Article 370 abrogation.
3. Since 2019 reform, there has been a **sustained crackdown on Overground workers**. Over 1100 people have been arrested for engaging in unlawful activities and around 500 have been detained under **Public Safety Act (PSA)**. Till April 2022, 53 terrorists have been neutralised and 48 over ground workers arrested.
 4. **Panchayats and District Development Council (DDC) Elections** have been conducted successfully with high public participation.
 5. The Jammu and Kashmir administration has signed more than 168 MoUs worth Rs 13,600 crores for investments, 6,000 acres of government land acquired for setting up industries and UAE has shown interest in investment.
 6. There is a perceptible change among common population due to increased economic activities, job creation, implementation of government policies and resumption of tourism.
 7. 75th Independence Day celebration on 15th August 2022 saw wide participation of common people hoisting tricolour. Both Independence Day and Republic Day are celebrated with great fervour in the valley.
 8. Infiltration across the Line of Control (LoC) has come down sharply since 2019.
 9. The J&K Infrastructure Development Finance Corporation has been set up to provide financial support to various projects that were commissioned years ago but were yet to be completed.

Negatives:

1. Since the 2019 Constitutional reforms, many terrorist organisations have mushroomed under secular-sounding names, such as **The Resistance Front, Anti-Fascist Force, and Kashmir Tigers**, while others have more Islamist names—**Al Qisaas, Al Jihad, Muslim Janbaz Force, and Markazul wal Arshad**.
2. Notably, all of these are fronts for existing terrorist organisations like the **Lashkar-e-Taiba, Jaish-e-Mohammad, and Hizbul Mujahideen**. Still, Indian security forces have had some success in identifying and eliminating terrorists associated with these groups.
3. **Targeting of civilians** has emerged as a new security challenge.
4. More than two dozen panchayat members have been killed by the terrorists to create fear among the masses.
5. According to the Indian Army, **over 100 terrorist launch pads continue to operate in Pakistan-occupied Kashmir**, but this has not translated into increased activity across the LoC because of the robust security grid in Kashmir, including the fencing of the LoC.
6. Terror hotbed has **shifted from North Kashmir to South Kashmir**. Shopian and Pulwama have become hotbed for militant recruitment.

Policy changes to reduce fresh recruitments:

1. Bodies of slain terrorists are not handed over to their families.
2. There burials are not allowed to be turned into a public spectacle
3. There burials are allowed only in areas far away from their native place.
4. Attachment of properties of terrorism facilitators.
5. **National investigation agency (NIA)** probes into terror financing are also proving popular and effective because for the first time, **conflict entrepreneurs** are in the crosshairs of investigation agencies, rather than common citizens.
6. Formation of the **Terror Monitoring Group** comprising the Income Tax Department, Enforcement Directorate, CBI, JKP, Research and Analysis Wing, and Intelligence Bureau has allowed these agencies to work in tandem against the terror finance networks. The Anti-Corruption Bureau has also become very active in **countering terror finance (CFT) operations**.
7. **Robust intelligence network** with inter agency and inter service coordination and cooperation.

Developmental initiatives undertaken:

1. In a report titled '**Jammu & Kashmir-Towards Peace, Progress Prosperity**' the J&K administration has said the union territory witnessed a record number of development projects completed in 2021-22, i.e 50,726. Besides the construction of 3,284 kilometres roads under Pradhan Mantri Gram Sadak Yojana.
2. The Union Territory has received investment proposals worth more than ₹52,000 crores with an employment potential of 2.37 lakhs
3. Connecting Kashmir valley with rest of India through Railways.
4. In Health sector -2 New AIIMS, 7 New Medical Colleges, 2 State Cancer Institutes and 15 Nursing Colleges have been taken up/operationalised recently.
5. **Jal Jeevan Mission**- Household tap water connections have increased from 5.75 lakh households (31%) to 10.55 lakh households (57%).
6. Two Districts (Srinagar and Ganderbal) have been made Har Ghar Jal Districts. All rural schools, anganwadi centres and health Institutions are provided with tap water connections.
7. **In Education sector** - Indian Institute of Technology (IIT) Jammu and Indian Institute of Management (IIM) Jammu have been made functional. The number of Govt. Degree Colleges/Engineering Colleges has increased from 96 to 147.

Challenges:

1. The **Kashmiri version of Sufi Islam is now being replaced by more literalist and fundamentalist interpretations of Islam**. Adding to the problem are the radical preachers from all the three main schools of Sunni Islam—**Deobandi, Bareilvi and Ahle Hadith**—coming from the Hindi heartland into Kashmir.
2. **Relentless information war** being waged from within and outside Kashmir. Social media is being used for this misinformation and disinformation campaign.
3. **Fearmongering over demographic change** and land rights being given to outsiders adds to the anxiety of common population.
4. Deradicalisation programme is not systematically structured and remains ad hoc.
5. Continued recruitment of homegrown terrorists.
6. Terror launchpads continue to remain operational across the LoC. Infiltration from across the border remains a threat.
7. Assembly elections have not taken place yet.
8. Targeting of civilians, Hindus and migrants and panchayat members.
9. A section of Kashmiri population continues to have resentment against India and provide material and moral support to the terrorists.
10. **Panchayat and DDC members Lack capacity** to perform their roles. Killing of panchayat members has resulted in fear among other elected representatives.

Targeting of civilians:

1. This shows a change in approach of terrorists. Earlier they used to target the armed forces. But targeting the civilians mainly the religious minorities in the valley and migrants is a new trend.
2. It also indicates lack of capacity and training of the terror groups since engaging with armed forces require better training and equipment while targeting the civilians does not require so.
3. Another purpose is to create fear among the minority communities so that resettlement initiatives of the Government of India can be thwarted.
4. Civilian targeting is a low cost and high return initiative. This can be sensationalised and will put the government on the defensive.

5. This also creates a security challenge in the valley since providing security to every civilian is simply not possible.

Current Scenario in Jammu and Kashmir

There has been a surge in terror attacks in the Jammu region, south of Pir Panjal range. Reports indicate that at least 50 foreign terrorists have infiltrated into the Jammu region. In past 32 months, 70 people including 18 civilians have been killed in terror incidents in Jammu region., more than 26 people have been killed by terrorists and 55 people have been injured.

Important Factors behind surge in Jammu region:

1. Increased military presence and enhanced security measures in Kashmir have made it challenging for terror groups to operate in the region.
2. Jammu has diverse population and strategic significance. The terrorists aim to exploit communal tensions and create discord.
3. The aim could be to stretch security forces thin and attract international attention.
4. The tough terrain of Jammu also provides favourable environment for terrorists to hide and attack.
5. The aim could also be to influence the political scenario, particularly ahead of assembly elections.

Steps Taken

- Troop deployment in Jammu region has been increased, surveillance system upgraded and intelligence operations have been intensified.
- MHA has directed security agencies to replicate the successes achieved in Kashmir valley through Area Domination Plan and Zero Terror Plan in Jammu division.

Insurgency in Punjab

Recent events like Multiple caches of weapons, ammunitions, narcotics dropped by drones and recovered by Punjab Police, targeting of police stations with RPGs, lynchings over sacrilege issue, targeting of community leaders indicate towards attempts of revival of insurgency in Punjab. from 2016 to date, 14 civilians and three terrorists have been killed. Most of the killings of civilians were targeted attacks on religious or religio-political leaders of RSS and Deras, and other perceived opponents of the Sikh religion.

In February 2023, a group of protestors led by radical Sikh leader Amritpal Singh attacked a police station in Ajnala to secure the release of their aide.

The smuggling of arms and narcotics is certainly an indicator that the ISI and the Khalistani terrorist organisations in Pakistan are attempting to revive the insurgency.

The terrorist organisations that ran the insurgency in Punjab are now based in Pakistan. Notable among these are Babbar Khalsa International, International Sikh Youth Federation, Khalistan Liberation Force, Khalistan Commando Force and Khalistan Zindabad Force.

They have overt members in the US, UK, Germany and Canada. In Punjab, they have only a handful of covert members. These organisations also try to influence the pilgrims visiting the gurudwaras in Pakistan.

Reasons:

External Factors:

1. ISI involvement to provide man and material support to destabilize India after 1971 debacle.
2. Illusion of Khalistan among Sikh diaspora living in Canada, UK, USA etc.
3. Groups like Babbar Khalsa, Sikh for Justice operating from abroad.
4. Foreign nations not taking actions due to vote bank politics and in the name of freedom of assembly & expression.

5. In 2017 Khalistani and Kashmiri groups held joint protests in the US and again in August 2020, they jointly staged a demonstration.

Internal Factors:

1. Increasing religious polarization in the society accentuated by political parties for mobilization of masses.
2. Stagnating Punjab economy with lack of jobs and employment.
3. Cultural affinities between two Punjabs on either side of the border.
4. Spread of drugs and narco-economy, gun culture, violence etc.
5. External support and a section of Diaspora with the imagination of rebuilding the state once ruled by Maharaja Ranjit Singh.

Steps Taken:

1. Jurisdiction of BSF expanded to 50 Km from border.
2. Anti-Drone technology deployed at specific points along the border.
3. Sikhs for Justice (SFJ) as an “unlawful association” under Unlawful Activities (Prevention) Act 1967.
4. On 1 July 2020, nine well-known Khalistanis were formally designated as terrorists under the UAPA Act.
5. Radical preacher and Khalistan sympathized Amritpal Singh and his aides have been arrested.
6. India has banned multiple influential twitter accounts like 1984tribute, Khalsa Kashmir, and Khalistan Centre.
7. India asked Canada to stop November 6 referendum and ban SFJ. In response, the Canadian government has said that they respect India’s “sovereignty and territorial integrity of India and that they will not recognize the so-called referendum. But they did not agree to stop the referendum.

Challenges:

1. State police lack capacity in terms of intelligence, proactive detection etc.
2. Border state and support of external agency i.e., ISI. Thus, more options of getting material support.
3. Challenges in detecting Drone movement.
4. Use of social media to spread the propaganda.
5. As groups are based across the border in Pakistan, the options of reining them in gets limited.
6. Attempts at tackling the propagandas like Referendum 2020 have had limited support due lack of support from Canada and other foreign governments.
7. India has accused Canada of failing to act against Khalistanis apparently because of “driven by vote-bank politics” but Canada’s PM rejected it and reaffirmed its commitment to “freedom of expression.”
8. Protests and violence by the Khalistan sympathizers abroad can lead to deterioration in ties with the western nations like the USA, UK, Canada, and Germany.

Suggestions:

1. Punjab Police needs to be revitalised and border security tightened with state of the art technology to counter the emerging threats.
2. Civil society groups to strengthen the inter-community harmony.
3. The primary vehicle for propaganda is the cyber space, which must be carefully monitored and countered by an ethical counter-programme.
4. Engagement with Canada, USA and UK, pressurising them to take action or extradite them.
5. Need for political parties to be cognizant of the impending thread due to religious mobilisation.
6. Improving governance, attracting investments and job creation to make youth gainfully employed.

Organised Crime

The **United Nations Convention on Transnational Organized Crime (UNTOC)** does not contain a precise definition of 'transnational organized crime'.

The Convention does contain a definition of 'organized criminal group'. As per Article 2(a),

- a group of three or more persons that was not randomly formed;
- existing for a period of time;
- acting in concert with the aim of committing at least one crime punishable by at least four years' incarceration;
- in order to obtain, directly or indirectly, a financial or other material benefit.

Organized crime is often both a product of and contributor to conflict in vulnerable states.

Types of organized Crimes:

1. Drug Abuse and Drug Trafficking
2. Smuggling
3. Money Laundering & Hawala
4. Terrorism & Narco-Terrorism
5. Contract Killings
6. Kidnapping for Ransom
7. Illegal Immigration (A large number of Indians are working abroad illegally)

Reasons for growth and continuation of organised crime:

1. Limited state capacity to enforce the law
2. Lack of cooperation between centre and states
3. Collusion with police and politicians
4. Capacity of these groups to intimidate common masses
5. Governments attempt to ban the products for which there is a demand resulting in smuggling.
6. Lack of transnational cooperation
7. Prevalence of unemployment, social and economic inequality
8. Huge profit margin in these activities
9. Judicial delay and weaknesses in witness protection system

Threats posed by Organised Crime:

1. Challenges legitimacy of the state
2. Leads to violence and unrest in the society
3. These activities generally misguide youth towards quick money & success rather than choosing the right path
4. It breeds corruption, Crime and inefficiency.
5. They become conduit for and provide mine and material support to terror groups
6. Loss to the state exchequer

Laws/Steps taken to tackle organised crime:

1. Prevention of Illicit Traffic in Narcotic Drugs and Psychotropic Substances Act, 1988
2. The Narcotics Drugs and Psychotropic Substances Act, 1988 govern the cases relating to trafficking of different narcotic substances;
3. Customs Act, 1962 governs and imposes liability for cases related to smuggling;
4. Prevention of Money Laundering Act, 2002 governs the cases relating to money laundering.
5. Immoral Traffic (Prevention) Act, 1956;

6. The Foreign Exchange Regulation Act, 1973,
7. The Public Gambling Act, 1867 - It strictly prohibits betting and public gambling.
8. The Inter-Operable Criminal Justice System has been implemented in 99.93% (16,733) police stations across the country. Moreover, 22,000 courts have been integrated into e-court systems. The National Automated Fingerprint Identification System holds records of over 90 lakh fingerprints. The data on 22,000 terrorist cases is also available for monitoring under the Integrated Monitoring of Terrorism (i-MOT), along with information on UAPA registered cases.

State specific laws

1. The Maharashtra Control of Organised Crime Act, 1999.
2. The Karnataka control of organised crime act
3. The Gujarat control of terrorism and organised crime act
4. The Uttar Pradesh control of organised crime act

International Efforts:

1. **The United Nations Convention against Transnational Organized Crime**, adopted by General Assembly in November 2000, is the main international instrument in the fight against transnational organized crime.
2. **Protocol to Prevent, Suppress and Punish Trafficking in Persons, especially Women and Children** adopted by General Assembly, entered into force in December 2003.
3. The **Protocol against the Smuggling of Migrants by Land, Sea and Air**, adopted by General Assembly, entered into force in January 2004.
4. **The Global Initiative Against Transnational Organized Crime** or **Global Initiative**, is an international non-governmental organization headquartered in Geneva. It is composed of a network of law enforcement, governance and development practitioners, who share the objective of developing innovative strategies and responses to organized crime.

Challenges in tackling:

1. No central legislation specifically governing organised crime in India.
2. Even as the crimes are tried under different laws, the trial is very slow with low conviction rate because of hostile witness, loss of evidence or some other reason.
3. lack of proper resources and technology with the law enforcement agencies.
4. Lack of coordination between centre and the states
5. Political patronage and politician- mafia- bureaucracy nexus.
6. Transnational nature of the crime requires coordination between nations and gets trapped in legal hassles

Suggestions for tackling Organised Crime:

1. Federal and International Cooperation: Regular cooperation among states, between state/s and centre and with other nations.
2. A broad central legislation on the line of anti-terrorism laws for swift action.
3. Education and skill development: Availability of employment will prevent youth from joining crime syndicates.
4. Preventing politics-crime nexus and criminalisation of politics.
5. Empowering law enforcement agencies and strengthening respective laws to prevent loopholes to be exploited.
6. Strong witness protection system to protect witnesses against criminals.

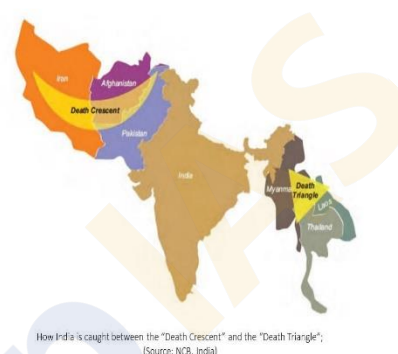
Second ARC Recommendation: India needs to enact a central law to deal with all organised crimes comprehensively. Specific provisions to define organised crime should be included in the new law governing federal crimes. The definition of organised crime in this law should be on the lines of the Maharashtra control of organised crimes act, 1999.

Drug Menace

As per International Narcotics Control Board (INCB), there has been a significant increase in drug seizures in India over the last five years i.e. from 2017 to 2022, with darknet and sea routes having emerged as the preferred mode of smuggling.

Geographically India is sandwiched between Golden Crescent/Death Crescent (Pakistan, Afghanistan, Iran) and Golden Triangle (Myanmar, Thailand, Laos). Nearly 90 per cent of the world's narcotics supply is done from these two regions.

- Vulnerabilities of maritime routes for supply to urban areas like Mumbai and Chennai.
- Porous borders and cross border use of drones by Pakistan.
- Lucrative market because of young population with high disposable income.



How India is caught between the "Death Crescent" and the "Death Triangle";
(Source: NCBI, India)

Major recent Drug hauls

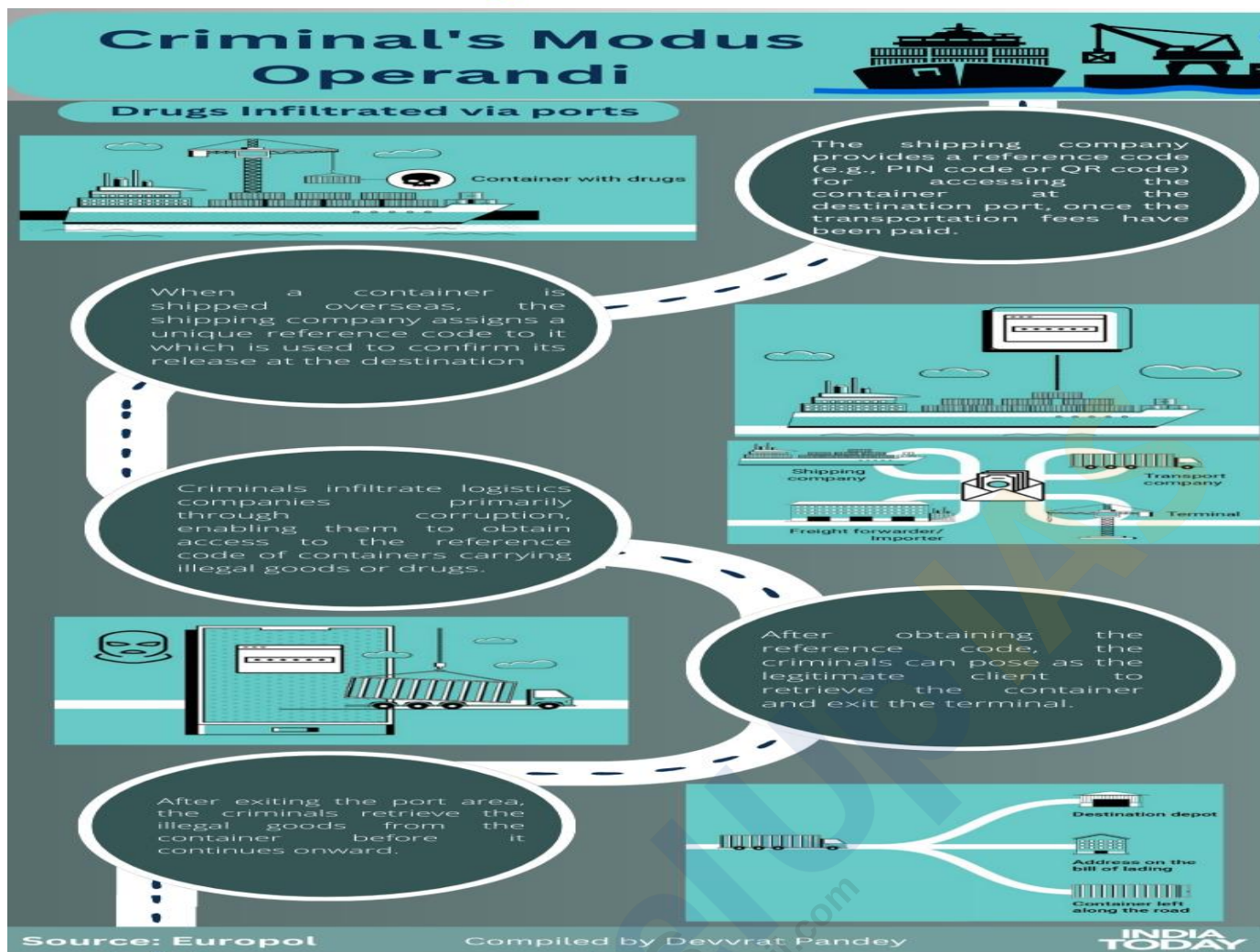
Multiple drugs consignments including 3000 kg Heroine worth over Rs. 21,000 crores seized in September 2021 from Mundra port.

In May 2023, at least 2,500 kg drugs (methamphetamine) worth around ₹12,000 crore seized near Kerala coast.

New Modus Operandi of criminals: Infiltrate ports and extract illicit goods

- Use of misappropriated container reference code or PIN code fraud: This method involves the corruption of only one individual, who then provides the code to the smugglers, allowing them to extract illegal goods from the port.
- Concealing drugs in legitimate shipments.
- Creating deceitful compartments in containers.
- Use of false documents to clear shipments.
- Infiltrating ports through corrupt port employees and officials.

Operational Challenge: Humanly impossible to check each cargo individually. According to Europol's investigative report, the EU's maritime ports handle approximately 90 million containers annually, but only 2 to 10 per cent of them can be inspected by authorities.



Steps Taken:

- Ministry of Home Affairs has adopted a three-pronged approach to crackdown on narcotics.
 - Strengthening institutional structures,
 - Empowerment of all agencies related to control of narcotics and strengthening the coordination among them
 - Launching an awareness campaign.
- Narcotic Drugs and Psychotropic Substances Act, 1985:** It is the principal legislation to regulate the operations of narcotic drugs and psychotropic substances.
 - It provides a stringent framework for punishing offences related illicit traffic in narcotic drugs and psychotropic substances through imprisonments and forfeiture of property.
 - Section 27A of the Act prescribes the punishment for financing illicit traffic and harbouring offenders.
- Joint coordination:** A narco coordination centre (NCORD) has been set up by the Ministry of Home Affairs for effective co-ordination among various law enforcement agencies.
- The **Multi-Agency Maritime Security Group (MAMSG)** set up under the aegis of National Security Council Secretariat, also monitors smuggling of drugs through sea routes.
- A **multi-agency group** involving **officials of IB, NCB and DRI** have been roped in to **check drug smuggling in the guise of legitimate cargo**.
- Cooperation with other countries:** The Indian Coast Guard (ICG) has developed a good synergy not only with the security agencies but also with the coast guards of Sri Lanka, Maldives and Bangladesh.
- NCB capacity increased:** NCB earlier had three regional offices in Delhi, Mumbai and Kolkata. Now, new regional offices are being setup in Amritsar, Chennai (for stopping smuggling of drugs into India via marine channels).

8. **Launch of NIDAAN** (National Integrated Database on Arrested Narco-offenders) portal: First-of-its kind database of arrested narcotics offenders for use by various central and state prosecution agencies.
9. **National Action Plan for Drug Demand Reduction (NAPDDR) for 2018-2025:** It aims at reduction of adverse consequences of drug abuse through a multi-pronged strategy.
10. **Nasha Mukh Bharat Campaign** launched in 2020 by Department of Social Justice and Empowerment in 272 identified districts to ensure supply curb, Outreach and Awareness and Demand Reduction effort.

Suggestions:

- **Intelligence Sharing:** Many state and central agencies work in isolation. Intelligence sharing and cooperation will help in catching kingpins of drug-syndicates.
- **Enhancing technological capabilities:** States should work together with the National Forensic Science University to use modern technologies like block chain analysis, map intelligence and digital forensics to curb the use of dark net and cryptocurrency.
- **Targeting the source:** Through bilateral and multilateral cooperation, the source can be targeted and uprooted.
- **Creating awareness among citizens:** Through lectures, films, events in schools and colleges and providing literature about harmful effects of drug abuse.
- **Punishments under NDPS and other laws** should be commensurate with the quantity of contraband recovered and need to look at the issue beyond political partisanship.
- **Need to establish more de-addiction centres and camps.**
- **Need to see the addicts as victims rather than criminals and behave sympathetically** so as to bring an attitudinal shift towards drug abuse.